J. ERICK DIMALANTA, ESQ. (SBN 164555)
erick@lopezlit.com

LOPEZ LAW GROUP
1255 Treat Blvd., Suite 300
Walnut Creek, CA 94597
Telephone: (925) 926-6452
Facsimile: (713) 275-9722

Attorneys for Defendant,
DELSIE, INC. dba Burger King

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
09/24/2024
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN FRANCISCO

JENNIFER HERNANDEZ Plaintiff, v. BURGER KING COMPANY LLC, a Florida Limited Liability Company; and Does 1-50, inclusive Defendants.	Case No.: CGC-24-611340 **DEFENDANT DELSIE INC. DBA BURGER KING'S ANSWER TO COMPLAINT**

COMES NOW, defendant DELSIE, INC. dba BURGER KING ("defendant") and answers the unverified complaint of plaintiff JENNIFER HERNANDEZ ("plaintiff") on file herein as follows:

GENERAL DENIAL

Inasmuch as the complaint is not verified under the provisions of section 431.30 of the California Code of Civil Procedure, the answering defendant denies generally each, every and all of the allegations in said complaint, and the whole thereof, including denial of all sums and amounts alleged, to be alleged or otherwise.

FIRST AFFIRMATIVE DEFENSE

(Apportionment of Fault)

As and for a first, separate and affirmative defense to the complaint and to each purported

cause of action contained therein, this answering defendant alleges: This answering defendant denies it was negligent in any fashion with respect to the damages, losses, injuries and debts claimed by the plaintiff in the complaint on file herein; however, if this answering defendant is found to be negligent (which supposition is denied and merely stated for the purpose of this affirmative defense), then this answering defendant provisionally alleges that defendant's negligence is not the sole and proximate cause of the resultant damages, losses and injuries alleged by plaintiffs, and that the damages awarded to plaintiff, in any, are to be apportioned according to the respective fault of the parties, persons, and entities, or their agents, servants, and employees who contributed to and/or caused said resultant damages as alleged, according to the proof presented at the time of trial. To assess any greater percentage of fault and damages against this answering defendant in excess of defendant's percentage of fault would be a denial of California equal protection and due process and Federal equal protection and due process, all guaranteed by the respective constitutions.

SECOND AFFIRMATIVE DEFENSE

(Comparative Fault)

As and for a second, separate and affirmative defense to the complaint and to each purported cause of action contained therein, this answering defendant alleges: The injuries to the plaintiff~~s~~ were sustained in that plaintiff failed to exercise ordinary, and reasonable care or caution for plaintiff's own safety; and such negligence on plaintiff's part constitutes a bar to any recovery by said plaintiff, or in the alternative, the recovery, if any, by said plaintiff should be reduced in proportion to the extent such negligence was a cause of plaintiff's injuries and damages, if any.

THIRD AFFIRMATIVE DEFENSE

(Fails to State Facts - General)

As and for a third, separate and affirmative defense to the complaint and to each purported

cause of action contained therein, this answering defendant alleges: That the complaint, and each purported cause of action contained therein, fails to state facts sufficient to constitute a cause of action against this answering defendant. (Code of Civil Procedure section 435.10(e).)

FOURTH AFFIRMATIVE DEFENSE

(Acts of Third Parties)

As and for a fourth, separate and affirmative defense to the complaint and to each purported cause of action contained therein, this answering defendant alleges: Any injuries or damages which may have been sustained by plaintiff were the proximate result of the negligence or intentional acts of third parties. For this reason, if plaintiff has been damaged, the damages must be apportioned among other parties or persons in proportion to their respective degrees of fault.

FIFTH AFFIRMATIVE DEFENSE

(Assumption of the Risk)

As and for a fifth, separate and affirmative defense to the complaint and to each purported cause of action contained therein, this answering defendant alleges: Any dangers or perils, if any, existing at the time of plaintiff's alleged injuries, all of which is denied by answering defendant, was open and obvious and known to plaintiff, who, despite such knowledge, conducted themself in such a manner to expose themself to said perils and dangers, if any, and by doing so assumed all risks attendant thereto.

SIXTH AFFIRMATIVE DEFENSE

(Implied Assumption of the Risk)

As and for a sixth, separate and affirmative defense to the complaint and to each purported cause of action contained therein, this answering defendant alleges: Plaintiff impliedly by conduct assumed the risk of a known and appreciated danger, if any, and thus may not recover damages from this defendant.

SEVENTH AFFIRMATIVE DEFENSE

(Failure to Mitigate Loss)

As and for a seventh, separate and affirmative defense to the complaint and to each purported cause of action contained therein, this answering defendant alleges: Plaintiff has failed to exercise reasonable care and diligence to avoid loss and to minimize her damages, if any, and therefore plaintiff may not recover for losses which could have been prevented by reasonable efforts on her own part, or by expenditures that might reasonably have been made on her behalf. Therefore, plaintiff's recovery, if any, should be reduced by the failure of plaintiff to mitigate her damages.

EIGHTH AFFIRMATIVE DEFENSE

(Lack of Foreseeable Risk)

As and for an eighth, separate affirmative defense to the complaint, this answering defendant is informed and believes and thereon alleges that defendant could not reasonably anticipate the harmful conduct plaintiff alleges.

NINTH AFFIRMATIVE DEFENSE

(Superseding Causes)

As and for a ninth, separate and affirmative defense to the complaint, and to each purported cause of action contained therein, this answering defendant alleges: that the negligence, if any, of this answering defendant was not a substantial factor in bringing about plaintiff's alleged injuries or losses, and therefore was not a contributing cause thereof, but was superseded by the negligence or intentional acts of others, whose negligence or intentional act was an independent, intervening, superseding and a proximate cause of any injury, damage or loss suffered by plaintiff.

TENTH AFFIRMATIVE DEFENSE

(No Causation)

As and for a tenth separate and affirmative defense to the complaint, and to each purported cause of action contained therein, this answering defendant alleges: To the extent plaintiff suffered damages, which defendant denies, such injury or damage was not proximately caused by any conduct or inaction of this answering defendant, or was not foreseeable, or both.

ELEVENTH AFFIRMATIVE DEFENSE

(Reserved Defenses)

As and for an eleventh, separate and affirmative defense to the complaint, and to each purported cause of action contained therein, this answering defendant alleges: Defendant presently has insufficient knowledge or insufficient information upon which to form a belief as to whether it may have additional affirmative defenses to assert. Defendant therefore reserves the right to assert additional affirmative defenses in the event discovery indicates it would be appropriate.

WHEREFORE, this answering defendant prays for judgment as follows:

1. That plaintiff take nothing by virtue of plaintiff's complaint;

For costs of suit incurred herein, and

2.

For such other and further relief as the court may deem just and proper.

Dated: May 28, 2024

LOPEZ LAW GROUP

By

J. ERICK DIMALANTA
Attorneys for Defendant
DELSIE, INC. dba BURGER KING

Case Name: *Jennifer Hernandez. v. Burger King Company LLC. et. al.*
Case Number: San Francisco County Superior Court No.: CGC-24-611340

PROOF OF SERVICE

I am a citizen of the United States, employed in the County of Contra Costa, California, over the age of eighteen years, and not a party to the within cause. My business address is 1255 Treat Blvd, Suite 300, Walnut Creek, CA 94597.

On **May 28, 2024,** I served the foregoing document(s) described as:

1. **Defendant Delsie, Inc. D/B/A Burger King's Answer to Complaint**

on the interested parties in this action, at the addresses listed below, as follows:

Plaintiff Jennifer Hernandez
Jacob Brown Esq.
DOWNTOWN LA LAW GROUP
910 S. Broadway
Los Angeles, CA, 90015
Jacob@downtownlalaw.com
T 213-389-3765

_X_ **BY ELECTRONIC TRANSMISSION ONLY.** I sent a copy of the documents to the persons at the email addresses listed in the Service List. This electronic service is sent to the email addresses obtained in compliance with Code of Civil Procedure §§ 1010.6(a)(2)(A)(ii), 1010.6(e)(1), and California Rules of the Court 2.25. No electronic message or other indication that the transmission was unsuccessful was received within a reasonable time after the transmission. As such, service has been completed only by emailing the document(s) to the person(s) at the email address(es) listed in the Service List.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on May 28, 2024, at Walnut Creek, California.

/S/ BAILEE SOBNOSKY_____
BAILEE SOBNOSKY